fit should accrue to the person making the promise. It is sufficient, that something valuable flows from the person to whom it is made; and that the promise is the inducement to the transaction. In the common case of a letter of credit given by A. to B., the person who, on the faith of that letter, trusts B., is admitted to have his remedy against A., although no benefit accrued to A. as the consideration of his promise. So, in the present case, Patton trusted Brooke on the credit of Violett's name, and Violett wrote his name for the purpose of giving Brooke that credit with Patton. It was, in effect, and in intention, a letter of credit. The case shows that this was both the intention and the effect of Violett's giving his name to Brooke. In conscience, and in substance, then, it is a letter of credit, upon which the money it was intended to secure, was advanced; and although in point of form, the transaction takes the shape, and was intended to take the shape, of an indorsement, yet so far as respects consideration, the indorsement has the full operation of an undertaking in the form of a letter of credit.

It is common in Virginia, for two persons to join in a promissory note, the one being the principal and the other the surety. Although the whole benefit is received by the principal, this contract has never been considered as a *nudum pactum* with regard to the surety. So far as respects consideration, no *difference is perceived in the cases. Violett has signed his [*151
name upon this paper, for the purpose of giving Brooke a credit with Patton, and his signature has obtained that credit. The consideration is precisely the same, whether his name be on the back or the face of the paper.

2. The second objection is, that the indorsement preceded the making of the note. This objection certainly comes with a very bad grace from the mouth of Violett. He indorsed the paper, with the intent that the promissory note should be written on the other side; and that he should be considered as the indorser of that note. It was the shape he intended to give the transaction; and he is now concluded from saying or proving that it was not filled up, when he indorsed it. It would be to protect himself from the effect of his promise, by alleging a fraudulent combination between himself and another, to obtain money for that other, from a third person. The case of *Russel* v. *Langstaffe*, reported in Douglas, is conclusive on this point.

3. The third objection is, that there was no memorandum of the agreement in writing. The argument on this point is founded on the idea, that the statute of frauds in Virginia is copied literally from the statute of Charles II. This is not the fact. The first section of the act of Virginia differs from the 4th section of the statute of Charles II., in one essential respect. The statute of England enacts, that no action shall be brought, in the cases specified, "unless the agreement on which such action shall be brought, or some memorandum or note thereof, shall be in writing," &c. The Virginia act enacts that no action shall be brought in the specified cases, "unless the promise or agreement on which such action shall be brought, or some memorandum or note thereof, shall be in writing," &c. The reasoning of the judges, in the cases in which they have decided that the consideration ought to be *in writing, turns upon the word agreement, of which the [*152
consideration forms an integral part. This reasoning does not apply to the act of Virginia, in which the word "promise" is introduced.

It was thought proper to notice this difference between the act of parliament, and the act of Virginia, although the opinion of the court is not de-

termined by it. In this case, the assignment does express a consideration. It is made for value received.

It is unnecessary to decide, in this case, whether the declaration ought to have alleged that the indorsement was made on consideration. With that question, the jury had no concern, and the direction of the court was not affected by it. There being no demurrer, it could only occur in arrest of judgment. But on a motion in arrest of judgment, the defendant below could not have availed himself of this error, if it be one, because there are two counts in the declaration, one of which is unquestionably good, and the court cannot perceive on which the verdict was rendered. By the act of *jeofails*, in Virginia, there is no error, if any one count will support the judgment.

The second exception is to the refusal of the circuit court to give the opinion prayed for by the counsel for the defendant below. When the error alleged is, not that the court has misdirected the jury, but that the court has refused to give a particular opinion, the opinion demanded must be so perfectly stated, that it becomes the duty of the court to give it as stated.

In this case, the opinion required by the counsel consists of two parts. The first is, to instruct the jury "that if they shall be satisfied, from the evidence that Richard Brooke, the maker of the note in this case, had, at the time the note became due, or at any time previous to the commencement of this suit
*153] against the defendant, property sufficient to pay *the debt claimed," &c., and the plaintiff brought no suit, then this action is not maintainable.

This court conceives that the circuit court ought not to have given this opinion. Had Richard Brooke possessed property, before the making of the note, and not afterwards, the opinion, in the terms in which it was required, would have been a direction to find their verdict for the defendant. So, if Richard Brooke had been in possession of property, for a single day, and had, the next day, become insolvent, the court was asked to say, that, in such a case, the indorser could only be made liable, by suit against the maker. Such a direction, in the opinion of this court, would have been improper.

The second branch of the opinion the circuit court was required to give, is in these words: "Or, if the jury shall be satisfied, that the said plaintiff and the said Brooke have, since the said note became due, both lived in the county of Fairfax, in Virginia, and have continued to reside in the county of Fairfax, until the beginning of the present suit, and the plaintiff hath not brought suit against the said Brooke, in Virginia, then the defendant is not liable in this action."

If the plaintiff had sued Brooke elsewhere than in Virginia, or if Brooke had become insolvent, previous to the making of the note, and had continued to be so, the opinion of the court, if given as prayed, would have been, that, still, a suit against the maker of the note was necessary to give a right of action against the indorser. This is not understood to be the law of Virginia. It is understood to be the law, that the maker of the note must be sued, if he is solvent, but his insolvency dispenses with the necessity of suing him. It is not known, that any decision of the state courts requires that this insolvency should be proved by taking the oath of an insolvent debtor, nor is it believed, that this is the only admissible testimony of
*154] *the fact of insolvency. Other testimony may be admitted. It would, therefore, have been proper to leave it to the jury to deter-

mine, whether it was, at any time, in the power of the plaintiff to have made the money due on this note, or any part of it, from the maker, by suit; and their verdict ought to have been regulated by the testimony in this respect. This opinion was not required.

This court is of opinion, that there is no error, and that the judgment is to be affirmed, with costs.

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## Pierce *v.* Turner.

*Recording of deeds.—Marriage settlement.*

The act of assembly of Virginia, which makes unrecorded deeds void, as to creditors and subsequent purchasers, means creditors of, and subsequent purchasers from, the grantor.[1]

A marriage settlement, conveying the wife's land and slaves to trustees, by a deed, to which the husband was a party, although not recorded, protects the property from the creditors of the husband.

Pierce *v.* Turner, 1 Cr. C. C. 462, affirmed.

Error to the Circuit Court of the district of Columbia, sitting at Alexandria, in an action of debt, brought by Pierce against Rebecca Turner, charging her as executrix *de son tort* of her late husband, Charles Turner, deceased. Upon the issue of *ne unques executrix*, the jury found a special verdict, stating, in substance, the following case:

On the 14th of February 1798, the defendant, by the name of Rebecca Kenner, being a *feme sole*, and seised and possessed, in her own right, of certain land and slaves, conveyed the same, by deed, in consideration of an intended marriage between herself and Charles Turner, to trustees, to be held in trust for the use of herself, until the marriage should be solemnized, and from and after the solemnization thereof, to the use of herself and the said Charles Turner, and the longest liver of them, and from and after their deaths, to the use of her heirs. The deed purported to be an indenture tripartite, in which Charles Turner was named as the second party, and as such he duly executed the deed; *he did not, however, make any settlement of his own property upon his intended wife, but appeared to be made a party merely for the purpose of testifying his privity and consent. [*155

About four months after the execution of the deed, two of the three subscribing witnesses proved the execution, before the county court of Fairfax, where all the parties inhabited: that probate was duly certified by the clerk, under direction of the court. But the deed purporting to be a conveyance of land as well as slaves, and one of the subscribing witnesses, soon after the execution of it, having left the United States, and never having returned, the deed was not fully admitted to record, but remained in the clerk's office, under the certificate of probate before stated, until the 1st of September 1807, when the county court, upon proof of the absence of the third subscribing witness, and of his handwriting, admitted the deed to record; all which was certified by the recording clerk, and found by the special verdict.

Soon after the execution of the deed, and in the same month (February

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[1] S. P. Sicard *v.* Davis, 7 Pet. 124; Maynard *v.* Thompson, 7 Id. 348. And see Henry *v.* Morgan, 2 Binn. 97; Lightner *v.* Mooney, 10 Watts 407.

1798), the contemplated marriage took place; whereupon, the trustees put Turner into possession of the land and slaves, and he continued possessed of the same, with the knowledge and approbation of the trustees, until his death, which happened some time in the month of December 1802, less than five years from the time of his marriage, and of his first coming into possession of the property.

Turner and his wife resided in Alexandria, from the time of their marriage until the autumn of 1801, when they removed into the county of Northumberland, in the state of Virginia, taking the slaves with them, by consent of the trustees; they continued to reside there, upon the land in the deed mentioned, on which the slaves were kept, until his death, in December 1802. Upon his death, she remained in possession both of the land and
*156] slaves, claiming exclusive property in the same, and to *hold possession of the same, with the privity and approbation of the trustees, whose privity and approbation were expressly found. In the autumn of 1803, the defendant removed back to Alexandria, in the district of Columbia, and brought with her a part of the slaves (of value sufficient to satisfy the plaintiff's debt), and had ever since resided in Alexandria, and there used the slaves so brought with her.

Three months after Turner's death, and seven months before the defendant removed from Northumberland back to Alexandria, the county court of Northumberland, finding that no person would apply for administration of the intestate's estate, committed the administration to the sheriff of the county, under a particular statute of Virginia. The sheriff returned an inventory of assets, appraised at $4631.72, which was distributed in due proportions among the creditors, under the special direction of the court. But the plaintiff put in no claim, and not being on the list of creditors reported to the court, received no part of the sum so distributed. None of the slaves conveyed by the said deed were meddled with, in the course of the sheriff's administration, nor included in the inventory and appraisement, although they were all then in the county, and some of them continued in the county ever since Turner's death. It was found that Turner died insolvent, unless the said slaves were charged with his debts.

By the 4th section of the act of assembly of Virginia, entitled "an act for regulating conveyances," it is enacted, "that all conveyances of lands," "and all deeds of settlement upon marriage, wherein either lands, slaves, money or other personal thing shall be settled," "and all deeds of trust and mortgages whatsoever," "shall be void as to all creditors and subsequent purchasers, unless they shall be acknowledged, or proved and recorded, according to the directions of this act; but the same, as between the parties and their heirs, shall nevertheless be valid and binding."

*157] *The deed in question never was proved or acknowledged and recorded according to the directions of the act; and the question was, whether it was void as to the creditors of the husband, so as to charge the widow, as his executrix in her own wrong?

The opinion of the court below was, that the deed was good and effectual to prevent the property vesting in the husband, by virtue of the marriage, and consequently, was never liable for his debts. That at the time of the marriage, no legal estate in the slaves was vested in the wife, and therefore, nothing was transferred to the husband by the marriage.

Pierce v. Turner.

*E. J. Lee*, for the plaintiff in error.—By marriage, all the personal estate of the wife becomes the absolute property of the husband. The operation of this principle can only be prevented, by pursuing strictly the mode pointed out by law. This deed wants those legal solemnities which the law requires to make it valid against creditors. The plaintiff is a creditor; the deed is, therefore, not valid against him. The word creditor, in the act of assembly, means not only the creditors of the grantor, but the creditors of every person whose debts could have been legally satisfied out of the property, if such deed had not been made. If the word is to have the limited construction contended for on the other side, and the deed be void only as to her creditors, and as to subsequent purchasers from her, the statute becomes nugatory; because, after marriage, she has no creditors, and cannot sell and convey. Her creditors have become his creditors; her debts have become his debts. If the deed be void as to her creditors, it must be void as to his creditors. If she can neither sell nor have creditors, the act must apply to his creditors, or it will be idle and unavailing.

If the husband had sold these slaves to persons ignorant of the deed, the sale would have been valid. *If he had been trusted upon the faith of this property, which he had in his possession, and which was supposed to have come by his wife, such creditors, who were ignorant of the deed, would have a right to payment out of this property. If they could not, the possession of the slaves would have been a fraud upon such creditors. [*158

It is true, in the present case, the debt was contracted before the marriage, but that cannot alter the principle of law. If the deed be void as to any of his creditors, it is void as to all. The term creditors is general, and literally comprehends creditors of the husband, as well as creditors of the wife. Where the words of a statute are plain, the court cannot indulge any latitude of construction, but must pursue the words. 3 Call 106; *Eppes* v. *Randolph*, 2 Ibid. 183.

If the property was liable for the husband's debts, it was assets, ano her appropriating it to her own use, makes her an executrix in her own wrong (Toller 17); although she did it, claiming them as her own, and under a void deed (2 Vin. Abr. 211; *Edwards* v. *Mercer*, 2 T. R. 588; *Hawes* v. *Loring*, Cro. Jac. 270; 2 Bac. Abr. 338; 5 Co. 34 *a*), even if there be a right ful administrator. But the possession taken by the sheriff of Northumberland county was not an administration. 2 T. R. 97.

If this deed be valid against creditors, no marriage settlement need be recorded. It renders unnecessary all the precaution which the legislature so anxiously took to prevent this kind of fraud and imposition.

*C. Simms, P. B. Key* and *Jones*, contrà.—The act for regulating conveyances, as it relates to creditors and their debtors, was intended to protect the former against secret deeds and conveyances made by the latter; it never was intended to *injure the rights of third persons, who do not claim under the debtor. Lord MANSFIELD, in the case of *Cadogan* v. *Kennett*, Cowp. 434, speaking of the statute of 13 Eliz., c. 5, which relates to frauds against creditors, says, that "such a construction is not to be given in support of creditors, as will make third persons sufferers." [*159

If there is any difficulty in the construction of this act, it arises from the

generality of the expression "creditors and subsequent purchasers." The first section of the act declares, that no conveyance shall be good against any creditor or purchaser, for valuable consideration, not having notice thereof, unless it be acknowledged or proved by three witnesses, &c. What purchaser is intended by this act? Unquestionably, a purchaser from the person who made the first deed. The effect or operation of the act is to give validity to the second deed, duly proved and recorded, in preference to a prior deed, not duly proved and recorded; and not to invalidate the first deed, in favor of a purchaser for a valuable consideration, from a person other than the maker of the first deed.

To illustrate the subject; suppose, A., the rightful owner of property, makes a conveyance of it to B., which is not recorded. C., who sets up a claim to the property, sells and conveys it to D., for a valuable consideration, and the deed is duly recorded; would the deed from A. to B. be considered as void against D., who does not claim under A.? Certainly not. Then, the subsequent purchaser must claim under the person who made the first deed, or the first deed cannot be considered void as to him. So, the general term "creditors," used in the act, must, for the like reasons, be
*160] understood to mean the creditors of the grantor or bargainor *in the first deed, and none but such creditors can set aside the deed.

If A., by deed, conveys property to B., and the deed is not recorded according to the act; C., the heir of A., contracts debts; the creditors of C. would have no lien or claim on the property conveyed by A. to B., nor would it be liable in any manner to C.'s debts; yet, but for the deed, the land would have descended to C. The right which creditors have to the property of their debtor is derivative. If he never had a right to the property, they can have none. Charles Turner never had any right to this property, unless under the deed.

Rebecca Kenner, before the marriage, was the sole and absolute owner of it, and was fully competent to dispose of it as she thought proper. She did dispose of it by a deed to trustees, which she was competent to make, which was completely binding upon her, and which divested from her all legal title and claim to the property. At the time of the marriage, she had no legal estate in her which could, by operation of law, be transferred to her husband by the marriage. As he was a party to the deed, and thereby assented to it, he was bound by it, and could never set it aside. Between all the parties to the deed, it was as valid and binding as if it had been duly acknowledged and recorded. The creditors of Charles Turner can claim nothing which he could not claim: if the marriage did not transfer the property to him, they cannot claim it at law. What never was his, cannot be theirs. If the property never was his, so as to be assets, the defendant can never be charged as executrix in her own wrong for taking possession of it.

But even if this property should finally be adjudged to be assets, yet we contend, she is not liable as executrix *de son tort*. If she took possession of
*161] the slaves, on a fair claim of property, believing herself *lawfully entitled to them, it cannot amount to such a tortious act as will charge her as executrix *de son tort*. Bro. Abr., Administrator, pl. 36; Executor, pl. 162; Fitz. Abr., Executor, pl. 65; Roll. Abr., Executor, pl. 417; 11 Vin. Abr., Executor, C. a, and B. a, pl. 5; 2 Leon. 226; Com. Dig., Administrator, C, 2; Freem. 13, pl. 12; *Stokes* v. *Porter*, Dyer 166.